

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY-----X
ADOLFO SAMMS & TAKIAH STANLEY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE WALIUR
RAHMAN (SHIELD # 6428), NEW YORK CITY
POLICE OFFICER JOHN DOE #1, and POLICE
OFFICERS JOHN DOES #2-4 (names and numbers of
who is unknown at present), and other unidentified
members of the New York City Police Department,Defendants.
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SUMMONS

Index #

The basis of venue is:
Place of IncidentPlaintiff designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 18, 2015

Respectfully submitted,


ILISSA BROWNSTEIN, ESQ.Attorney for Plaintiff
65 Broadway, 7th Floor
New York, New York 10006
(212) 691-3333CITY OF NEW YORK Corporation Counsel
100 Church Street New York, New York 10007DETECTIVE WALIUR RAHMAN (SHIELD # 6428)
NBBN Command
Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
ADOLFO SAMMS & TAKIAH STANLEY,

VERIFIED COMPLAINT

Plaintiffs,

Index #

-against-

THE CITY OF NEW YORK, DETECTIVE WALIUR RAHMAN (SHIELD # 6428), NEW YORK CITY POLICE OFFICER JOHN DOE #1, and POLICE OFFICERS JOHN DOES #2-4 (names and numbers of who is unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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Plaintiffs **Adolfo Samms** and **Takiah Stanley**, by their attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of her federal constitutional, state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiffs and caused the unjustifiable arrest of plaintiffs. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Adolfo Samms is a citizen of the United States and a resident of Brooklyn, New York.
3. Plaintiff Takiah Stanley is a citizen of the United States and a resident of Brooklyn, New York.
4. Detective Waliur Rahman (Shield # 6428) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. Detective Waliur Rahman (Shield # 6428) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York City Police Officers John Does #2-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. New York City Police Officers John Does #2-4 are being sued in their individual capacities and official capacities.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiffs in furtherance of their State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(H) hearing examination of the Plaintiffs on December 19, 2014.

STATEMENT OF FACTS

15. Adolfo Samms was 23 years old during the time of his arrest. Takiah Stanley was 22 years old during the time of her arrest.
16. On August 15, 2014, at approximately 5:00 p.m., inside the apartment of Mr. Samms, at 616 Nostrand Avenue apartment #1C, Brooklyn, New York, members of the NYPD entered the apartment and immediately arrested Plaintiff Adolfo Samms, Plaintiff Ms. Stanley, and Mr. Samm's sister, Monique Samms.
17. Police officers were looking for Mr. Samms' brother, who was not there at the time of the raid. Police officers proceeded to conduct a search on the apartment. They also searched both Plaintiffs including Mr. Samm's sister.
18. Mr. Samms and Ms. Stanley were arrested for misdemeanor possession of a controlled substance. No substances were found on their person or in the room where they were found.
19. Adolfo Samms was incarcerated for approximately 24 hours.
20. Mr. Samms received an ACD on August 16, 2014, at his arraignment.
21. Takiah Stanley was released from the precinct and given a phone number to call regarding a future court date. She was in incarcerated for approximately 6 hours.
22. Ms. Stanley had three court appearances. On March 18, 2015, her case was dismissed.
23. Plaintiffs filed a notice of claim on September 20, 2014.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

24. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.
25. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiffs to be imprisoned without probable cause and maliciously prosecuted in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST & FALSE IMPRISONMENT

26. Plaintiffs repeat and reallege paragraphs 1 through 25 as if fully set forth herein.
27. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
28. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
29. The City, as the employer of the officer defendants, is responsible for their wrong doing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

[Plaintiff Takiah Stanley Only]

30. The plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
32. Defendants commenced and continued a criminal proceeding against plaintiffs.
33. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
34. The prosecution and criminal proceedings terminated favorably to plaintiff Takiah Stanley on March 18, 2015.
35. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.
36. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

37. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

39. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other members of the NYPD.
41. Defendants failed to intervene to prevent the unlawful conduct described herein.
42. As a result of the foregoing, plaintiffs were subjected to an illegal search.
43. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
44. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENCE

45. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
46. Defendants owed a duty of care to plaintiffs.
47. Defendants breached that duty of care by subjecting them to an illegal search.
48. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.
49. All of the foregoing occurred without any fault by plaintiffs.
50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

51. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
53. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
54. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

EIGHTH CAUSE OF ACTION

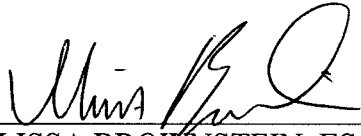
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

55. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
57. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
58. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
59. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.
60. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiffs were unlawfully arrested and prosecuted.
61. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

WHEREFORE, ADOLFO SAMMS and TAKIAH STANLEY, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
April 18, 2015

By:


ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
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New York, New York 10006
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

DETECTIVE WALIUR RAHMAN (SHIELD # 6428)
NBBN Command
Brooklyn, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is that Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
April 18, 2015



ILISSA BROWNSTEIN, ESQ.